

The Attorney General has established that the deponents, while state employees, were performing a federal function in conducting the investigations. *Decl. Gilchrist*, ¶ 3. Plaintiffs have presented no evidence to the contrary.

No employee or former employee of the DHHS may provide testimony or produce documents in any proceedings to which this part applies concerning information acquired in the course of performing official duties or because of the person's official relationship with the Department unless authorized by the Agency head pursuant to this part based on a determination by the Agency head, after consultation with the Office of the General Counsel, that compliance with the request would promote the objectives of the Department.

45 C.F.R. § 2.3.

The Agency head for Centers for Medicare and Medicaid Services (“CMS”) is the Administrator. 45 C.F.R. § 2.2(7). Here, the deponents move to quash the subpoenas and ask that Plaintiffs proceed with the standard procedure of seeking authorization from the head of DHHS, which is exactly what Plaintiffs did when they deposed Joanne Gilchrist last year. While Plaintiffs argue that “DHHS eventually agreed with plaintiffs position and withdrew their objections to the deposition of Ms. Gilchrist,” the letter attached as Exhibit A makes it clear that authorization was granted under 45 C.F.R. § 2.3. While the Court sympathizes with Plaintiffs in the urgency given the upcoming trial date, there is nothing before the Court that leads the Court to find that these subpoenas are not subject to the federal prohibition. The subpoenas issued clearly seek information regarding investigations conducted for CMS, which is a federal agency.

The motion to quash is **GRANTED**. The moving parties did not provide a proposed Order as required by Local Rule of Court 5.17(D). The Attorney General is to prepare the Order.

IN RE: HOWE

CASE NUMBER: 26CV-0209893

Tentative Ruling on Petition for Change of Name: Petitioner Sharon Elizabeth Howe seeks to change her name to Sharon Rose-Elizabeth Howe. The matter was originally on calendar for hearing on April 27, 2026 and the matter was continued for Petitioner to file the original Certificate of Publication, which has not been filed. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the original Certificate of Publication (not a copy) is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: JESSUP

CASE NUMBER: 26CV-0210019

Tentative Ruling on Petition for Change of Name: Petitioner Micheal Joseph Jessup seeks to change his name to Michael Joseph Jessup. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

PARRISH VS. ALLIANCE RV, LLC, ET AL.

CASE NUMBER: 25CV-0207009

Tentative Ruling on Motion for Summary Judgment or Adjudication: In Case No. 200709 Defendants RV Retailer Idaho, LLC dba Blue Compass RV and Alliance RV, LLC filed a joint Motion for Summary Judgment on December 17, 2025 that was noticed for March 9, 2026. On January 30, 2026, the parties in Case Nos. 207009 and 208691 filed a joint stipulation to consolidate the two matters. The accompanying Order was executed on February 4, 2026 and continued the March 9, 2026 hearing to May 26, 2026. Plaintiff has not filed an Opposition to the motion and there is nothing before the Court to indicate that Plaintiff was provided proper notice of the

May 26, 2026 hearing. The February 4, 2026 Order only lists Defendant RV Retailer Idaho, LLC on the front page and a conformed copy was provided to Defendant RV Retailer Idaho, LLC's fax filing agency. Notice of Entry of Order has not been filed. A proof of service for the Order has not been filed. With no Opposition and no Proof of Service reflecting that Plaintiff was properly noticed of today's hearing date, the matter cannot proceed to hearing. **An appearance is necessary on today's calendar to discuss whether Plaintiff was provided notice of today's hearing and if so, how long Defendants will need to file the Proof of Service.**

WILSON VS. FORD MOTOR COMPANY, ET AL.

CASE NUMBER: 24CV-0205243

Tentative Ruling on Motion for Summary Adjudication: Defendant Ford Motor Company ("Ford") moves for summary adjudication on five separate issues related to three of Plaintiff's causes of action. Plaintiff Sarah Wilson opposes the motion.

The specific issues presented for summary adjudication (as argued by Defendant) are:

1. Plaintiff cannot establish that her second cause of action for violation of Civil Code § 1793.2(B) because she cannot establish that any repair took longer than 30 days to complete.
2. Plaintiff cannot establish her third cause of action for violation of Civil Code § 1793.2(A)(3) because she cannot establish that Ford failed to make available to authorized service and repair facilities sufficient services literature and replacement parts.
3. Plaintiff cannot establish her fifth cause of action for fraudulent inducement-concealment against Ford because Plaintiff cannot establish that Ford had knowledge of a defect at the time of sale.
4. Plaintiff cannot establish her fifth cause of action because Plaintiff cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale.
5. Plaintiff cannot establish her fifth cause of action because it is barred by the economic loss rule.

Evidentiary Objections. CRC 3.1354(b) requires that "[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." Defendant has not submitted objections separately as required by CRC 3.1354(b). Additionally, the objections are being made in the separate statement to the purported undisputed facts but have not been made to specific evidence. The objections are overruled for noncompliance with CRC 3.1354(b).

Merits. "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." CCP § 437c(f)(2).

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

CCP § 437c(f)(1).

A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.